



File No.: EXP202208420

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 16, 2023, and based on the following

FACTS

FIRST: On June 16, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202208420, by virtue of which a sanction of 5,000 euros (FIVE THOUSAND EUROS) was imposed on A.A.A. for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, and for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED EUROS).

This resolution, which was notified to the appellant, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, the following was recorded:

FIRST: It is recorded, according to the documentation in the file, that in the residence where both the claimant and the respondent reside, a surveillance camera has been installed in the ceiling, which apparently records video and audio, and moves 360 degrees according to detected movement.

SECOND: It is recorded, according to documentation in the file, that there is no informational sign warning of the existence of video cameras.

THIRD: The appellant submitted on July 31, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, basing it fundamentally on the following:

ALLEGATIONS

FIRST.- THE TRUTH OF THE FACTS REPORTED BY B.B.B. IS DENIED, WHICH HAVE SERVED AS THE BASIS FOR THE SANCTION.

It is not true that A.A.A. has placed a surveillance camera in the hallway of her house.

B.B.B. has invented such a fact with the sole purpose of harming Ms. A.A.A.

SECOND.- Mr. B.B.B. has been harassing Ms. A.A.A. for months with FALSE REPORTS. As proof of this, I submit, as Document 4, Judgment (...), as Document 5, report from the City Council of ***LOCALITY.1, and as Document 6, Decree XXXX/2022 from the City Council of ***LOCALITY.1 dated ***DATE.1.

THIRD.- If it were true that there was a video surveillance camera in the hallway of the house that violated the privacy and disturbed the peace of Mr. B.B.B., he would have reported it to the Local Police and the National Police since both law enforcement agencies attended the residence on numerous occasions. See the documents submitted by this party in this recourse (documents 5, 6, 7, 8), which do not mention the alleged video surveillance camera.

FOURTH.- IT IS NOT TRUE that A.A.A. placed any camera. The photographs provided by the complainant do not correspond to the house of Ms. A.A.A. Mr. B.B.B. did not provide images (videos or photographs) that could have been captured by that camera he claims A.A.A. has placed, as it is impossible since no surveillance camera was installed in A.A.A.'s house.

The facts reported by Mr. B.B.B. are pure invention.

FIFTH.- Lack of motivation regarding the amount of the sanction.

SIXTH.- The contested resolution orders Ms. A.A.A. to remove the camera or video camera system from its current location. This is impossible since there have never been any video surveillance cameras in her residence.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

-The appellant alleges that it is not true that A.A.A. has placed a surveillance camera in the hallway of her house. B.B.B. has invented such a fact with the sole purpose of harming Ms. A.A.A. If it were true that there was a video surveillance camera in the hallway of the house that violated the privacy and disturbed the peace of Mr. B.B.B., he would have reported it to the Local Police and the National Police since both law enforcement agencies attended the residence on numerous occasions.

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National since both law enforcement agencies visited the residence on numerous occasions.

The photographs provided by the complainant do not correspond to the house of Ms. A.A.A. Mr. B.B.B. did not provide images (videos or photographs) that could have been captured by the camera he claims to have installed at A.A.A.'s residence, as it is impossible since no camera was installed at A.A.A.'s house.

The facts reported by Mr. B.B.B. are pure invention.

In this regard, this Agency requested the appealing party to provide images (photographs or video) of the area of their house (hallway) where the claimant indicated the camera was located, in order to verify the truthfulness of the claims made.

Upon fulfilling the request within the required timeframe and providing two photographs of their residence, it was observed that these do not correspond to those submitted with the complaint by the claimant, which served as the basis for initiating a sanctioning procedure. It is concluded, therefore, that while there may have been sufficient indications of a breach of data protection regulations at first glance, such indications have proven inconclusive as the images provided by both parties do not match.

III

Conclusion

In the present case, along with the appeal for reconsideration, new relevant documentation has been submitted regarding the matters raised.

Having reviewed the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on June 16, 2023, in file EXP202208420, indicating to the sanctioned party that the obligation to pay the fine imposed in the contested resolution is rendered null and void.

SECOND: TO NOTIFY this resolution to A.A.A. and, in accordance with Article 77.2 of the GDPR, TO INFORM the complainant about the outcome of the complaint.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of

the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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